

# HOUSE . . . . . No. 1862

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***John J. Mahoney***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to car theft with digital devices.

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PETITION OF:

| NAME:                  | DISTRICT/ADDRESS:     | DATE ADDED:      |
|------------------------|-----------------------|------------------|
| <i>John J. Mahoney</i> | <i>13th Worcester</i> | <i>1/17/2025</i> |

# HOUSE . . . . . No. 1862

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By Representative Mahoney of Worcester, a petition (accompanied by bill, House, No. 1862) of John J. Mahoney relative to car theft with digital devices. The Judiciary.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to car theft with digital devices.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 266 of the General Laws, as appearing in the 2022 Official Edition,  
2 is hereby amended by inserting after section 49 the following section:-

3           Section 49A. (a) As used in this section, the following words shall have the following  
4 meanings:-

5           “Motor vehicle key programming or emulating device”, means any device, computer  
6 program, application, or software designed or used to electronically communicate with a motor  
7 vehicle for the purpose of programming or emulating a motor vehicle key fob that is capable of  
8 being used to unlock or start the motor vehicle.

9           “Relay attack device” means any device, computer program, application, or software  
10 designed to intercept the signal from the key fob of a motor vehicle to unlock or start the motor  
11 vehicle.

12           (b) No person shall, with intent to steal a motor vehicle or other property therefrom,  
13   knowingly manufacture, sell, offer to sell, transfer, or possess a motor vehicle key programming  
14   or emulating device or relay attack device.

15           (c) No person shall, with intent to steal a motor vehicle or other property therefrom,  
16   knowingly aid or permit another to use a motor vehicle key programming or emulating relay  
17   attack advice.

18           (d) Whoever violates this section shall be punished by imprisonment in the state prison  
19   for not more than ten years, or by a fine of not more than one thousand dollars and imprisonment  
20   in jail for not more than two- and one-half years.